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PAINFUL: Relatives at a Patna camp searching for their loved ones among the photographs of railway death victims

victims are woman, and a few of their bodies have marks of violence.

A Bihar police officer admitted that organisations like the Railway police often avoid formalities like post-mortem or get the autopsy process conducted perfunctorily, especially in the case of unclaimed bodies. That makes it even more difficult to ascertain the real cause of death.

The police is, however, pinning high hopes on the identification process because once the bodies are identified, it would be easier for them to ascertain whether the victim died in an accident or his body was thrown by criminals along the tracks. But till the investigation is carried out properly, the photographs will keep staring back.

by Amitabh Srivastava

it a case of train accident. "Even the GRP personnel are more than inclined to pass off every body as a case of accident because it spares them the tedium of investigation," confides a senior GRP official. Barring a few exceptions where the kin of an identified body alleges foul play, the GRP fights shy of registering FIRs under Section 302 (abetment of murder) or Section 306 (inciting suicide) of the Indian Penal Code (IPC). Rather, it prefers to play safe by citing routine accident as the cause of death—a ploy to avoid cum-

bersome investigations and court work.

Adds G.S. Grewal, IG, GRP, Punjab: "Identifying and investigating the cases of victims killed on the tracks is a Herculean task and we neither have the manpower nor the resources for that." None of his 11 police stations has a vehicle to respond to the emergency of retrieving a dead body and his staff has to travel by train to reach the spot. On finding a body on the track or a railway platform, the GRP's standard operating procedure involves filing an inquest report under Section 174 of CrPC and keeping the unidentified body with themselves for 72 hours after the post-mortem before handing it over to the local municipal authorities for cremation. Only those bodies which bear telltale signs of murder are advertised in the newspapers or put in public notices. GRP offers a princely reward of Rs 200 to anyone who helps in identifying the body. "Our shoestring budget and a huge number of unidentified bodies don't allow us to advertise every case," says Arora.

The GRP gets a paltry sum of Rs 700 for handling each unidentified body. Since the mortuaries at government hospitals have little space for accommodating more than five bodies, the GRP police stations have constructed their own makeshift morgues which stink like hell. Moreover, an understaffed GRP is overwhelmed by the enormous task of retrieving a rising number of bodies on the tracks. A GRP employee with an average service of 25 years has handled more than 800 such bodies. "It has a de-sensitising effect on their minds," says Arora, who has started an Art of Living course and yoga classes to de-stress and sensitise her staff.

Exemplifying the casual approach is the murder of Mukesh Kumar, a 27-year-old youth from Durana village in Haryana's Jhajjar district, whose body was recovered on the railway track near Bahadurgarh on August 3, 2007. Despite the fact that the post-mortem report clearly established the ante-mortem nature of injuries on his head, two probes by GRP treated it as a case of accident, thereby overruling the contention of the kin that he had been murdered. Six months later, a third probe confirmed that he had indeed been murdered by one Jai Pal. "The initial shoddy investigation harmed the prosecution case and may deny us justice," rues Kumar's father Prabhu Ram, tearfully.

Such callousness is evident even in open-and-shut cases of murder. Six months ago, the GRP found an unidentified body of a

KILLER WHEELS

■ In most cases, the General Railway Police fights shy of filing a murder or suicide case and prefers to play safe by citing routine accident as the cause of death

■ Many of the unidentified bodies found on the tracks are also of victims of inter-state contract killings where family disputes are settled for a price

■ Police request to railway authorities for increased track surveillance has found no response

■ In the past six years, deaths due to rail accidents have increased from 866 in 2001 to 1,121 in 2007 in Haryana alone

■ During the same time frame, the number of murders on the tracks has increased nearly threefold from 24 to 89

BLIND CHASE

It is difficult for the police to find out the real cause of death in most cases since the bodies are badly mutilated.